

FY25 Jean Lafitte National Historical Park and Preserve - Chalmette National Cemetery wall cleaning and vegetation removal.

The National Park Service, Contracting Operations East, hereby issues a combined synopsis/solicitation for a requirement of Jean Lafitte National Historical Park and Preserve.

It is the intent of this service contract to provide all labor, materials, tools, equipment, and supervision to clean and remove vegetation from perimeter brick masonry walls in preparation for a brick masonry repair campaign.

Please see the Statement of Work for more details.

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in Federal Acquisition Regulation (FAR) Subpart 12.6, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; proposals are being requested and a written solicitation will not be issued.

The NAICS code for this acquisition is 561730. It is the contractor's responsibility to be familiar with applicable clauses and provisions. This acquisition shall result in award of a firm fixed price contract.

Site Visit is scheduled for Wednesday June 4th, 2025 at 9:00 CT.

Evaluation factors: The selection will be made by evaluating proposals based on cost, technical approach, and relevant experience. See clause section for weighting of these three evaluation factors. Bidders must be able to provide references of applicable experience in order to receive the award. Bids must arrive by electronical to tara_clark@nps.gov by the closing date noted in this solicitation.

Jorge T. Menéndez

Facility Manager

Jean Lafitte National Historical Park and
Preserve

New Orleans Jazz National Historical Park
C - 504.382.4941

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Tara H Clark

Contracting Specialist

Contracting Operations (ConOps) East
National Park Service, DOI

Tara_clark@nps.gov

REQUEST FOR QUOTATION (THIS IS NOT AN ORDER)		THIS RFQ ☒ IS ☐ IS NOT A SMALL BUSINESS SET ASIDE		PAGE 1 OF 1 PAGES
1. REQUEST NO. 140P5225R0003	2. DATE ISSUED 02/19/2025	3. REQUISITION/PURCHASE REQUEST NO. 0044009176	4. CERT. FOR NAT. DEF. UNDER BDSA REG. 2 AND/OR DMS REG.1	RATING
5a. ISSUED BY NPS, SER - West MABO 2680 Natchez Trace Parkway Tupelo MS 38804			6. DELIVERY BY (Date) 08/30/2025	
			7. DELIVERY ☒ FOB DESTINATION ☐ OTHER (See Schedule)	
			9. DESTINATION	
5b. FOR INFORMATION CALL: (No collect calls)			a. NAME OF CONSIGNEE Chalmette National Battlefield	
NAME Tara Clark			b. STREET ADDRESS 8606 Saint Bernard Highway	
AREA CODE 662			NUMBER 372-0363	
8. TO:				
a. NAME			b. COMPANY	
c. STREET ADDRESS			c. CITY Chalmette	
d. CITY			e. STATE LA	
			f. ZIP CODE 70043	
10. PLEASE FURNISH QUOTATIONS TO THE ISSUING OFFICE IN BLOCK 5a ON OR BEFORE CLOSE OF BUSINESS (Date) 06/13/2025 1400 CD		IMPORTANT: This is a request for information, and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in Block 5a. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or services. Supplies are of domestic origin unless otherwise indicated by quote. Any representations and/or certifications attached to this Request for Quotations must be completed by the quoter.		

11. SCHEDULE (Include applicable Federal, State and local taxes)					
ITEM NO. (a)	SUPPLIES/SERVICES (b)	QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)
00010	Header Text: Chalmette National Cemetery wall cleaning and vegetation removal. Cemetery cleaning/vegetation removal Product/Service Code: S208 Product/Service Description: HOUSEKEEPING-LANDSCAPING/GROUNDSKEEPING Delivery: 08/30/2025 Period of Performance: 04/01/2025 to 08/30/2025				

12. DISCOUNT FOR PROMPT PAYMENT	☐ are ☐ are not attached	a. 10 CALENDAR DAYS (%)	b. 20 CALENDAR DAYS (%)	c. 30 CALENDAR DAYS (%)	d. CALENDAR DAYS	
					NUMBER	PERCENTAGE

NOTE: Additional provisions and representations ☐ are ☐ are not attached			
13. NAME AND ADDRESS OF QUOTER		14. SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION	15. DATE OF QUOTATION
a. NAME OF QUOTER			
b. STREET ADDRESS		16. SIGNER	
c. COUNTY		a. NAME (Type or print)	b. TELEPHONE
			AREA CODE
d. CITY	e. STATE	f. ZIP CODE	c. TITLE (Type or print)
			NUMBER

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N/A

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C.1 See Attached Statement of Work

Section D – Packaging and Marking

D.1 Payment of Postage and Fees

All postage and fees related to submitting information forms, reports, etc., to the CO or the COR shall be paid by the contractor.

D.2 Marking

All information submitted to the Contracting Officer or the Contracting Officer's Representative shall clearly indicate the Contract Number of the contract for which the information is being submitted.

Section E - Inspection and Acceptance

Section F – Deliveries or Performance

F.1 52.252-02 CLAUSES INCORPORATED BY REFERENCE

FEB 1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <http://www.arnet/far.gov>

Clause	Title	Date
52.242-14	Suspension of Work	April 1984

F.2 52.211-10 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK APR 2008

The Contractor shall be required to

(a) commence work under this contract within 10 calendar days after the date the Contractor receives the notice to proceed,

(b) prosecute the work diligently, and

(c) complete the entire work ready for use not later than 90 days. * The time stated for completion shall include final cleanup of the premises.

(End of Clause)

Section G – Contract Administration Data

G.1 IDENTIFICATION OF GOVERNMENT OFFICIALS

Contracting Officer's Representative (COR) for this contract will be:

Jorge T. Menéndez, Facility Manager
Jean Lafitte National Historical Park and Preserve
New Orleans Jazz National Historical Park
C - 504.382.4941
jorge_menendez@nps.gov

Contract Officer (CO) responsible for administering this contract:

Tara H. Clark, Contracting Officer
Contracting Operations (ConOps) East
tara_clark@nps.gov

G.2 TECHNICAL DIRECTION

The performance of the work required herein shall be subject to the technical direction and surveillance of the COR or his designee. As used herein, "technical direction" is direction to the Contractor which requires pursuit of certain lines of inquiry, filing in detail, or otherwise serving to accomplish the contract specifications. The technical direction, to be valid:

- (a) Must be issued in writing consistent with the general scope of the work set forth in the contract;
- (b) May not constitute a new assignment of work changes to the expressed terms, conditions, or specifications incorporated into this contract;
- (c) Shall not constitute a basis for extension of the contract delivery schedule.

Nothing contained in this part authorizes the Contractor to incur costs in excess of the contract price or other limitation of funds set forth in the contract due to extra work performed in response to informal directions, suggestions, or instructions (oral or written) given by representatives of the CO, unless prior to commencing such work, the Contractor: 1) directly notifies the CO; 2) requests a formal contract modification; and 3) receives written authorization to proceed from the CO.

G.3 CORRESPONDENCE

Any correspondence initiated by the Contractor shall include the Contract Number and shall be addressed to the CO at tara_clark@nps.gov.

G.4 CONTRACT PAYMENTS

The Contractor shall submit invoices in two copies monthly to the Contracting Officer for the percentage of work completed. Contractor and COR at the site must agree on the percentage of work completed at the end of each month. The COR must sign this invoice or it will be returned to the Contractor and will delay payment. A correctly signed invoice is reviewed by the COR and returns the payment request to the CO who approves and confirms vendor is authorized to submit the invoice in the Internet Payment Process (IPP) system for payment.

Payments are authorized by Clause 52.235-5, which requires that the Contractor certify with each payment request that he has paid or will pay with the proceeds of the payment his employees and subcontractors.

G.5 JOB SITE ADMINISTRATION

The Government will designate a Project Inspector (PI) who will be available at the site to inspect the work as it progresses. The PI will prepare an Inspector's Daily Log, detailing ground and weather conditions, work being performed, materials delivered, and notes of any problems or difficulties. At the end of every day of work on this contract, the Contractor's Superintendent, as defined below, shall contact the PI, review the daily log, and sign as the Contractor's Representative. Unless the Contractor's Superintendent makes notations to the contrary on a daily log, then the log shall be presumed to be accurate. The PI is not authorized to make technical decisions or give technical directions; the Contractor or the Contractor's Superintendent must contact the COR regarding such decisions and directions.

The Contractor shall have a competent superintendent (hereinafter referred to as the "Contractor's Superintendent") who is (i) deemed acceptable to the Government; (ii) authorized to act on the Contractor's behalf; and (iii) to be present on the job site at all times when contract work is being performed.

G.6 PAYROLL RECORDS

The Prime Contractor is responsible for furnishing the Contracting Officer with one copy of the Weekly Payroll Form WH-347 or equivalent to include payroll records for his/her subcontractor's. Payroll records shall be submitted within seven (7) days after the close of the payroll period and numbered in consecutive order. The Prime Contractor shall review all subcontractors' payroll and ensure that all employees are paid in accordance with the Wage Determination, which is a part of this contract.

The Prime Contractor shall ensure that compliance is met. The Contractor is subject to the Wage and Hour Dept., U.S. Department of Labor, and may be subject to liquidated damage for non-compliance.

G.7 SUBCONTRACTING

The Prime Contractor shall complete a Standard Form (SF1413) for each subcontractor and submit the form to the Contracting Officer at the Pre-Construction meeting. No subcontractor shall be allowed on the site without an executed SF 1413. The Prime shall be held responsible for ensuring that his/her subcontractor's DO NOT subcontract any portion of this work. The Prime Contractor is responsible to ensure that all subcontractors carry sufficient insurance in accordance with this contract

Section H – Special Contract Requirements

H.1 Executive Order 13513 Prohibition on Text Messaging and Using Electronic Equipment Supplied by the Government While Driving as prescribed in Federal Leadership on Reducing Text Messaging While Driving

Prohibition on Text Messaging and Using Electronic Equipment Supplied by the Government while Driving (Oct 2009)

This Executive Order introduces a Federal Government-wide Prohibition on the use of text messaging while driving on official business or while using Government –supplied equipment. Additional guidance enforcing the ban will be issued at a later date. In the meantime, please adopt and enforce policies that immediately ban text messaging while driving company-owned or –rented vehicles, government-owned or leased vehicles, or while driving privately owned vehicles when on official government business or when performing any work for or on the behalf of the government.

(End of order)

H.2 GENERIC GENDER TERMINOLOGY

Except where stipulated by the Federal Acquisition Regulations, the use of terms such as he, she, his, and her are not to be interpreted as implying other than neutral gender terms such as "it" or "them".

H.3 SAFETY

The Contractor is responsible for establishing and maintaining compliance with all applicable laws, regulations, rules, and standards, including without limitation, those regulations, rules, and standards, promulgated for the administration and enforcement of the following laws: the Occupational Safety and Health Act (OSHA) or Federally approved State equivalent(s) thereof; the Comprehensive Environmental Response, Compensation and Liability Act (CERCLA) as amended by Superfund Amendments and Reauthorization Act (SARA); Emergency Planning and Community Right-to-Know Act (EPCRA); Clean Air Act (CAA); Clean Water Act (CWA) and Toxic Substances Control Act (TSCA); and Solid Waste Disposal Act (SWDA), as amended by Resource Conservation and Recovery Act (RCRA).

H.4 PROGRESS MEETINGS

(a) The Contractor shall be available to meet with the CO or his/her representative at the job site during construction to discuss work progress.

(b) Meetings will be scheduled by the CO with timely notification to the Contractor.

(c) At the progress meetings, the Contractor shall give oral reports of the progress on the project to the CO. If the work is behind schedule, the Contractor shall be prepared to (i) discuss the work and any causes of work delay(s); (ii) present a plan to bring the work back into conformance with the schedule; or, if necessary (iii) to propose a revised work schedule.

H.5 PAYROLLS

The Contractor must furnish copies of his weekly payrolls to the CO. Payroll submission is required weekly, seven (7) days after close of payroll period.

H.6 OPERATION OF FACILITY DURING CONSTRUCTION

Construction activities shall not interrupt the function and day-to-day operations of the facility during construction. The contractor shall coordinate with the Project Inspector for any temporary measures. All temporary measures employed shall be at the Contractor's expense and shall be removed upon completion of the contract.

H.7 WORK HOURS

Normal work hours are from 7:00 a.m. through 4:00 p.m., Monday through Friday. Contractor will not be permitted to work at the job site on Sunday or legal holidays unless otherwise authorized by the CO.

H.8 USE OF PREMISES

(a) Before any camp, quarry, borrow pit, storage, detour, or bypass site, other than shown on the drawings, is opened or operated on Government land or lands administered by the Government, written permission shall be obtained through the Contracting Officer. A camp is interpreted to include the campsite or trailer parking area of any employee working on the project for the Contractor. Such permission, if granted, will be without charge to the Contractor.

(b) Unless provided otherwise, the Contractor shall provide and maintain sanitation facilities for the workforce at the site. Solid waste shall be disposed of in accordance with applicable Federal, State, and local regulations.

H.9 MAXIMUM WORK WEEK

The maximum workweek that will be approved is 40 hours. The Contractor's proposed hours of work are to include daily starting and stopping times.

H.10 SAMPLES AND CERTIFICATES

When required by the specifications or the contracting Officer, samples, certificates, and test data shall be submitted after award of the contract, prepaid, in time for proper action by the contracting Officer or his/her designated representative. Certificates and test data shall be submitted in triplicate to show compliance of materials and construction specified in the contract performance requirements. Samples shall be submitted in duplicate by the contractor, except as otherwise specified, to show compliance with the contract requirements. Materials or equipment for which samples, certifications or test data are required shall both be used in the work until approved in writing by the Contracting Officer.

H.11 EXCAVATION AND UTILITY CLEARANCES

The Chief of Maintenance, for each park, shall ensure that the Contractor is provided with necessary excavation and utility clearances. The Contractor shall request such clearances and staking in writing to the Contracting Officer no less than ten (10) calendar days prior to the date which he/she anticipates commencement of work. The Contractor will not proceed with excavation of any kind until such clearances have been issued. Clearances will be valid from the date of issue or completion of, or otherwise directed by the issuing authority.

H.12 DISPOSAL

Debris, rubbish, and non-usable material resulting from under this contract shall be disposed in a manner that meets federal, state and local laws.

H.13 CONTRACTOR EMPLOYEES

(a) The Contractor shall provide the Contracting Officer with the name(s) of the responsible supervisor authorized to act for the Contractor.

(b) The Contractor shall furnish sufficient personnel to perform, supervise and manage all work.

(c) Contractor employees shall conduct themselves in a proper, efficient, courteous and business-like manner.

(d) The Contractor shall remove from the site any individual whose continued employment is deemed by the contracting Officer to be contrary to public interest or inconsistent with the National Park Service.

H.14 PERMITS

The contractor shall, without additional expense to the government, obtain all appointments, licenses, and permits required to perform work under this contract. The Contractor shall comply with federal, state and local laws. Evidence of such permits and licenses shall be provided to the Contracting Officer before work commences, or as requested.

H.15 QUALITY OF WORK

Workmanship shall be of the highest quality and best practices of the trade. Contractor shall conform to all requirements of the state and county code, ANSI A 10.6 and applicable codes of the National Fires Protection Association. All replacement materials shall conform to the manufacturer specifications and standards. Substitute items shall be equal to or better than the original material and must be approved by the Government.

H.16 COMPLETION OF WORK

The time stated for completion of the project includes all materiel procurement, payroll records, corrections of all discrepancies (Punch List Items), and final clean up on premises as stated in the clause "Commencement, Prosecution and Completion of Work", FAR 52.211-10 (APR 1984) Section F.

H.17 MATERIAL APPROVAL SUBMITTALS

The submittals contemplated by the clause herein entitles "Materials and Workmanship", FAR 52.236-5 (APR 1984), Section I, shall be submitted to the Contracting Officer through the COR in five (5) copies. The Denver Service Center Form (DSC-1) entitled "Transmittal USDI, National Park Service", shall be used. Contractor shall re-submit any disapproved submittals within seven (7) calendar days of disapproval.

H.18 ARCHEOLOGICAL FINDINGS

Petroglyphs, artifacts, burial grounds or remains, structural features, ceremonial, domestic, and archeological objects of any nature, historic or prehistoric, found within the construction area, are the property of and will be removed and only by the Government. Should Contractor's operations uncover or his employees find any archeological remains, Contractor shall suspend operations at the site of discovery; notify Contracting Officer immediately of the findings; and continue operation in other areas. Included with the notification shall be a brief statement of the location and details of the findings. Should the temporary suspension of work at the site result in delays, or the discovery site require archeological studies resulting in delays or additional work for the contractor, he will be compensated by an equitable adjustment under the General Provision of the Contract.

H.19 DOI ELECTRONIC INVOICING Electronic Invoicing and Payment Requirements - Internet Payment Platform (IPP) APRIL 2013

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice *[Contracting Officer to edit and include the documentation required under this contract]*:

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of Boston (FRBB) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email ippgroup@bos.frb.org -or phone (866) 973-3131.

Section I – Contract Clauses

I.1 52.252-02 CLAUSES INCORPORATED BY REFERENCE

FEB 1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <http://www.arnet/far.gov>

Clause	Title	Date
1452.203-70	Restriction on Endorsements	July 1996
1452.215-70	Examination of Records by the Department of the Interior	April 1984
1452.224-01	Privacy Act Notification (July 1996) Deviation	July 1996
1452.236-70	Prohibition Against Use of Lead-based Paint	July 1996
52.204-13	System for Award Management Maintenance	October 2018
52.204-18	Commercial and Government Entity Code Maintenance	July 2016
52.204-19	Incorporation by Reference of Representations and Certifications	December 2014
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	November 2015
52.213-04	Terms and Conditions—Simplified Acquisitions (Other Than Commercial Items)	January 2020
52.215-08	Order of Precedence--Uniform Contract Format	October 1997
52.219-06	Notice of Total Small Business Set-Aside	March 2020
52.219-28	Post Award Small Business Program Representation	March 2020
52.222-06	Construction Wage Rate Requirements	August 2018
52.222-07	Withholding of Funds	May 2014
52.222-08	Payrolls and Basic Records	August 2018
52.222-09	Apprentices and Trainees	July 2005
52.222-10	Compliance with Copeland Act Requirements	February 1988
52.222-11	Subcontracts (Labor Standards)	May 2014
52.222-12	Contract Termination-Debarment	May 2014
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations	May 2014
52.222-14	Disputes Concerning Labor Standards	February 1988
52.222-15	Certification of Eligibility	May 2014
52.222-27	Affirmative Action Compliance Requirements for Construction	April 2015
52.223-06	Drug-Free Workplace	May 2001
52.223-18	Encouraging Contractor Policies to Ban Text Messaging While Driving	August 2011
52.225-3 Alt II	Buy American-Free Trade Agreements-Israeli Trade Act Alt I	May 2014
52.227-04	Patent Indemnity – Construction Contracts	December 2007
52.228-2	Additional Bond Security	October 1997
52.228-11	Pledges of Assets	August 2018
52.228-12	Prospective Subcontractor Requests for Bonds	May 2014
52.232-05	Payments Under Fixed Price Construction Contracts	May 2014
52.232-16 Alt I	Progress Payments	March 2000
52.232-23	Assignment of Claims	May 2014
52.232-27	Prompt Payment for Construction Contracts	January 2017
52.236-05	Material and Workmanship	April 1984
52.236-07	Permits and Responsibilities	November 1991
52.236-17	Layout of Work	April 1984
52.236-26	Preconstruction Conference	February 1995
52.237-4 Alt I	Payment by Government to Contractor Alt I	April 1984
52.243-5	Changes and Changed Conditions	April 1984
52.246-13	Inspection – Dismantling, Demolition, or Removal of Improvements	August 1996

I.2 1452.204-70 RELEASE OF CLAIMS-DEPARTMENT OF THE INTERIOR**JULY 1996**

After completion of work and prior to final payment, the Contractor shall furnish the Contracting Officer with a release of claims against the United States relating to this contract. The Release of Claims form (DI-137) shall be used for this purpose. The form provides for exception of specified claims from operation of the release.

I.3 1452.228-70 LIABILITY INSURANCE**JULY 1996**

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

- 1. Worker's compensation and employer's liability: \$1,000,000**
- 2. General Liability: \$500,000 each person and \$1,000,000 each occurrence**
- 3. Property Damage: \$1,000,000**

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

(c) The contractor shall name the United States, Bureau of Indian Affairs, as the insured party(ties) on the liability insurance policy.

I.4 52.225-9 BUY AMERICAN ACT-CONSTRUCTION MATERIALS**MAY 2014**

(a) *Definitions.* As used in this clause--

“Commercially available off-the-shelf (COTS) item”—

(1) Means any item of supply (including construction material) that is—

- (i) A commercial item (as defined in paragraph (1) of the definition at FAR 2.101);
- (ii) Sold in substantial quantities in the commercial marketplace; and
- (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

“Component” means an article, material, or supply incorporated directly into a construction material.

“Construction material” means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

“Cost of components” means--

- (1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or
- (2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

“Domestic construction material” means—

- (1) An unmanufactured construction material mined or produced in the United States;
- (2) A construction material manufactured in the United States, if—
 - (i) The cost of its components mined, produced, or manufactured in the United States exceeds 50 percent of the cost of all its components. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic; or
 - (ii) The construction material is a COTS item.

“Foreign construction material” means a construction material other than a domestic construction material.

“United States” means the 50 States, the District of Columbia, and outlying areas.

(b) *Domestic preference.*

- (1) This clause implements the 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the component test of the Buy American statute is waived for construction material that is a COTS item. (See FAR 12.505(a)(2)). The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.
- (2) This requirement does not apply to information technology that is a commercial item or to the construction materials or components listed by the Government as follows: _____ [*Contracting Officer to list applicable excepted materials or indicate “none”*]
- (3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that
 - (i) The cost of domestic construction material would be unreasonable. The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 6 percent;
 - (ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or
 - (iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) *Request for determination of inapplicability of the Buy American statute.*

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including--

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data.* To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison

Construction material description	Unit of measure	Quantity	Price (dollars) *
<i>Item 1</i>			
Foreign construction material			
Domestic construction material			
<i>Item 2</i>			

Foreign construction material			
Domestic construction material			

[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.]

[Include other applicable supporting information.]

*[*Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued).]*

(End of Clause)

I.5 52.236-14 AVAILABILITY AND USE OF UTILITY SERVICES

APRIL 1984

(a) The Government shall make all reasonably required amounts of utilities available to the Contractor from existing outlets and supplies, as specified in the contract. Unless otherwise provided in the contract, the amount of each utility service consumed shall be charged to or paid for by the Contractor at prevailing rates charged to the Government or, where the utility is produced by the Government, at reasonable rates determined by the Contracting Officer. The Contractor shall carefully conserve any utilities furnished without charge.

(b) The Contractor, at its expense and in a workmanlike manner satisfactory to the Contracting Officer, shall install and maintain all necessary temporary connections and distribution lines, and all meters required to measure the amount of each utility used for the purpose of determining charges. Before final acceptance of the work by the Government, the Contractor shall remove all the temporary connections, distribution lines, meters, and associated paraphernalia.

(1) The contractor can access electricity and water from the existing building. Water is available only from a standard garden hose style spigot.

(End of clause)

I.6 52.252-4 ALTERATIONS IN CONTRACT

APRIL 1984

Portions of this contract are altered as follows:

(End of clause)

